

The record also does not establish futility. After Plaintiff served verified supplemental responses and produced additional documents, Defendant did not request an oral or video conference after reviewing those responses. (Goldstein Decl., ¶¶ 7-9.) Since defense counsel merely sent correspondence and made no attempt to call or discuss the issues substantively, the court is ordering a proper meet and confer.

Motion to Compel is continued to 10.07.26.

Parties ordered to meet and confer **in person, by telephone or videoconferencing** in accordance with CCP § 2016.040(a). A joint declaration shall be filed at least 10 days prior to the next hearing date addressing the meet and confer. No further briefing shall be permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508832	COYNE VS GENERAL MOTORS, LLC	HEARING RE: MOTION FOR ATTORNEYS FEES BY NATALIE ZISKIND COYNE

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

At issue in this motion is the reasonableness of Plaintiff’s request. The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney’s fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney’s fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney’s fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

First, the hourly rate of \$625 is high for Riverside County. A more reasonable rate is \$550.

Second, as to the hours spent, the court finds spending 1.2 hours on preparing the complaint is excessive. A reasonable amount is .5 hours. The court also finds a clerical task in serving the complaint. The court also reduces the 3.0 hours for "Review Oppo / Draft / File Serve Reply / Hrg" to 2.0 hours. The court reduces 1.9 hours total.

As for costs, the court finds the costs to be supported and reasonable, and awards the full amount of \$705.21.

Plaintiff's Motion for Attorney's Fees GRANTED in PART.

Plaintiff awarded \$8,470 (15.4 hours at \$550/hr) + \$705.21 costs for total of \$9,175.21.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600719	MUNOZ MACIAS VS ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION	HEARING ON MOTION TO COMPEL ARBITRATION

Tentative Ruling: No tentative ruling. Hearing is continued to 10.27.26.

Plaintiff is permitted to file a supplemental opposition to the Reply considering the additional information contained in Defendant's Reply. Any additional briefing filed by either party will result in sanctions. All papers relating to the motion to compel arbitration shall be served electronically on counsels' email addresses of record. Defendant disregarded the court's order on 8.10.26. Sanctions imposed in the amount of \$250 as to attorney Juan M. Armenta, payable to the court in 30 days. Further violations shall result in additional sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600927	HERNANDEZ VS AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	HEARING RE: MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY ERICA MARIA HERNANDEZ

Tentative Ruling: A party may file a motion compelling further answers to RFPs if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. §2031.310.) The moving party on a motion to compel further responses to RFPs must set forth "specific facts showing good cause justifying the discovery sought by the demand." (C.C.P. §2031.310(b)(1).) The burden to establish "good cause," is met by a fact-specific showing of relevance. (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) ¶¶ 8:1495.6 to 8:1495.10.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement." (*Glenfed Development Corp., supra*, 53 Cal.App.4th at 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good